

Rajasthan Public Service Commission (Gazetted Staff) Service Rules and Regulations, 1991

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State of Rajasthan - Act

Rajasthan Public Service Commission (Gazetted Staff) Service Rules and Regulations, 1991

RAJASTHAN

India

Rajasthan Public Service Commission (Gazetted Staff) Service Rules and Regulations, 1991

Rule

RAJASTHAN-PUBLIC-SERVICE-COMMISSION-GAZETTED-STAFF-SERVICE-RULES-AND-REGULATIONS-1991 of 1991

Published on 8 January 1991

Commenced on 8 January 1991

[This is the version of this document from 8 January 1991.]

[Note: The original publication document is not available and this content could not be verified.]

Rajasthan Public Service Commission (Gazetted Staff) Service Rules and Regulations, 1991

Published vide Notification No. No.F.8(1)DOP/A-2/75, dated 8.1.1991

Notification No. No.F.8(1)DOP/A-II/75. - In exercise of the powers conferred by the proviso to Article 309 read with clause (b) of Article 318 of the Constitution of India, the Governor of Rajasthan hereby makes the following rules and regulation regulating the recruitment of the Gazetted Staff to the Rajasthan Public Service Commission and making provision with respect to their conditions of Service, namely:-

Part-I General

1.

Short title and commencement.

(1)

These rules and regulations may be called the Rajasthan Public Service Commission (Gazetted Staff) Service Rules and Regulations, 1991.

2.

They shall come into force from the date of their publication in the Rajasthan Rajpatra.

2. Definitions.

- In these rules and regulations, unless the context otherwise requires:

(a)

"Commission" means the Rajasthan Public Service Commission;

(b)

"Committee" means the Committee referred to in rule 10;

(c)

"Governor" means the Governor of the State of Rajasthan.

(d)

"Government" means the Government of Rajasthan.

(e)

["Member of the Service" means a person appointed to a post in the service on the basis of regular selection under the provisions of these rules or the rules or order superseded by these rules.]

[Substituted vide Notification dated 10.10.02 for-'Member of the Service' means a person appointed in a substantive capacity to a post in the service under the provisions of these Rules and Regulations.]

(f)

"Probation" means an appointment on trial;

(g)

"Qualifying Service" means service rendered on the post/posts from which promotion is made, reckoned from the date of appointment/promotion after regular selection by any of the methods of recruitment prescribed under these rules and does not include service rendered on Urgent/Temporary basis under rule 14;

Note:- Absence during service for training or other *purposes treated as duty under the RSR, 1951 and leave, except extra-ordinary leave and deputation, on similar nature of posts with prior sanction of the competent authority, shall also be counted as service for computing the qualifying service required for promotion.

(h)

"Service" means the Rajasthan Public Service Commission Service;

(i)

"State" means the State of Rajasthan;

(j)

"Schedule" means the Schedule appended to these Rules and Regulations;

(k)

"Substantive appointment" means an appointment made under the provisions of these rules and regulations to a substantive vacancy after due selection by any of the methods of recruitment prescribed under these rules and regulations and includes an appointment on probation or as a probationer followed by confirmation on the completion of the probationary period;

(l)

"Secretary" means the person appointed as such and includes a person performing for the time being the duties of the Secretary to the Commission and

(m)

"Year" means the financial year.

3.

Interpretation.

- Unless the context otherwise requires the Rajasthan General [Clauses*]

[Substituted for- 'Clause' vide corrigendum dated 31.10.92.]

Act, 1955 (Rajasthan Act VIII of 1995) shall apply for the interpretation of these Rules and Regulations as it applies for the interpretation of a Rajasthan Act.

Part-II Cadre

4.

Composition and strength of the service.

(1)

The nature of the posts included in the service shall be as specified in column 2 of the Schedule.

(2)

The strength of posts of the Service shall be such as may be determined by the Governor from time to time:-

Provided that the Governor:-

(a)

May create any post, permanent or temporary, from time to time, as may be found necessary and may abolish or allow to lapse any such post in the like manner without thereby entitling any person to any compensation.

(b)

May leave unfilled or hold in abeyance any post, permanent or temporary, from time to time, without thereby entitling any person to any compensation.

5.

Constitution of the Service.

- The service shall consist of :-

(a)

All persons holding substantively the posts specified in the Schedule;

(b)

All persons recruited to the service before the commencement of these rules and regulations; and

(c)

All persons recruited to the service in accordance with the provisions of these rules and regulations.

Part-III Recruitment

6.

Method of recruitment.

- Recruitment to the Service after the commencement of these rules and regulations shall be made by promotion/accordance with Part-IV of these rules and regulations.

Provided that the Secretary to the Commission shall be appointed by the Commission with the approval of the Governor by selecting an officer belonging to IAS for such term as may be determined by the Governor in consultation with the Commission.

7.

Notwithstanding anything contained in these rules and regulations, the recruitment, appointment, promotion, seniority and confirmation etc. of a person who joins the Army/Air Force/Navy during an Emergency shall be regulated by such orders and instructions as may be issued by the Government from time to time provided that these are regulated mutatis mutandis according to the instructions issued on the subject by the Government of India.

8.

[Reservation of Vacancies for the Scheduled Castes and the Scheduled tribes.

[Substituted for Vide Notification dated. 10.10.02.]

(1)

Reservation of vacancies for the scheduled castes and the scheduled tribes shall be in accordance with the orders of the Government for such reservation in force at the time of recruitment i.e. by direct recruitment or by promotion.]

(2)

The vacancies so reserved for promotion shall be filled in by seniority-cum merit and merit.

(3)

In filling the vacancies so reserved the eligible candidate who are members of the Scheduled castes and the Scheduled Tribes, shall be considered for appointment in the order in which their names appear in the list prepared for direct recruitment by the Commission/Appointing Authority, as the case may be and the Departmental promotion Committee/Appointing Authority, as the case may be, into the case of promotes, irrespective of their relative rank as

compared with other candidates.

(4)

[Appointment shall be made strictly in accordance with the rosters prescribed separately for direct recruitment and promotion.

(4A)

In the event of non-availability of the eligible and suitable candidates amongst the Scheduled castes and the scheduled tribes, as the case may be, for direct recruitment, in a particular year, the vacancies so reserved for them shall be carried forward to the subsequent three recruitment years. After the expiry of three recruitment years, such carried forward vacancies shall be filled in accordance with the normal procedure.

Provided that if recruitment is not held in any recruitment year, such recruitment year shall not be counted for the purpose of this sub-rule:

Provided further that filling up of the vacancies in accordance with the normal procedure under this sub-rule shall not affect the reservation of posts as per the post based roster and vacancies on the reserved posts available in the roster may be filled in from amongst the persons belonging to the Scheduled Castes or Schedule Tribes, as the case may be, for which such vacancy is available in subsequent years.

(4B)

In the event of non-availability of the eligible and suitable candidates for promotion amongst the Scheduled Castes and Schedules Tribes, as the case may be, in a particular year, the vacancies so reserved for them shall be carried forwarded until the suitable Scheduled Castes and the Scheduled Tribes candidate(s), as the case may be, are available in any circumstances no vacancy reserved for Scheduled Castes and the Scheduled Tribes candidates shall be filled by promotion from General category candidates. In exceptional cases, where in the public interest the Appointing Authority feels that it is necessary to fill up the vacant reserved post(s) by promotion from the General category candidates on urgent temporary basis, the Appointing Authority may make a reference to the Department of Personnel and after obtaining prior approval of the Department of Personnel, they may fill up such post(s) by promoting the General category candidates(s) on urgent temporary basis clearly stating in the promotion order that the General category candidate(s) who are being promoted on urgent temporary basis against the vacant post reserved for Schedule Castes and the Scheduled Tribes candidates, as the case may be, shall have to vacate the post as and when the candidate(s) of the category become available:

Provided that there shall be no carry forward of the vacancies in posts or class/category/group of posts in any cadre of Service to which promotions are made on the basis of merit alone, under these rules.]

[Substituted vide Notification dated 17-01-13.]

9.

Determination of vacancies.

(1)

Subject to the provisions of these rules, the Commission shall determine as on 1st April every year, the actual number of vacancies occurring during the financial year.

(2)

The Commission shall also determine the vacancies of earlier years, year wise which are required to be filled in by promotion, if such vacancies were not determined and filled earlier in the year in which they were required to be filled in.

Part-IV Procedure for Recruitment by Promotion

10.

Constitution of the Committee.

- The Committee shall consist of the following:-

(i)

The Chairman of the Commission Or a Member nominated by him.

Chairman

(ii)

[The Secretary to the Government in the Department of

Personnel or his representative not below the rank of Deputy

Secretary to the Government in the Department of personnel. [[Substituted for Vide notification dated

27.09.2000.]]

Member]

(iii)

Secretary to the Commission

Member-Secretary

Provided that in case any officer constituting the Committee has not been appointed to the post concerned, the officer holding the charge of the post for the time being shall be the Member or Member-Secretary, as the case may be, of the Committee.

11.

[Restriction of promotion of persons foregoing promotions.

[Substituted for vide notification dated 05.08.1998.]

- In case a person on his appointment by promotion to the next higher post either on the basis of urgent temporary appointment or on regular basis on the recommendation of the Departmental Promotion Committee, forgoes such an appointment through his written request and if the concerned Appointing Authority accepts his/her request, the person concerned shall be debarred from consideration for promotion (both on the basis of urgent, temporary appointment or on regular basis) for subsequent two recruitment years for which the Departmental Promotion Committee is held and the name of such person who forgoes promotion shall not be included in seniority-sum-eligibility list to be placed before the Departmental Promotion Committee for subsequent two recruitment years.]

12.

Eligibility, Criteria and procedure for promotion.

(1)

As such as it is decided that a certain number of posts are required to be filled by promotion, the Secretary to the Commission shall, subject to the provisions of sub-rule (7) [prepare a correct and complete list containing names of all persons who are qualified under these rules for promotion to the class of posts concerned, in order of seniority.]

[Substituted vide corrigendum dated 31-10-92.]

(1A)

[No person shall be consider for promotion for 5 recruitment years from the date on which his promotion becomes due, if he/she has more than two children on or after 1st June, 2002.

Provided that the person having more than two children shall not be deemed to be disqualified for promotion so long as the number of children he/she has on 1st June, 2002, does not increase.

Provided further that where a Government Servant has only one child from the earlier delivery but more than one child are born out of a single subsequent delivery, the children so born shall be deemed to be one entity while counting the total number of children.]

[Added vide Notification NO. F.7(1) DOP/A-2/95, Dated 20.06.2001.]

(2)

The person holding the posts enumerate in Col. 6 of the Schedule shall be eligible for promotion to posts specified in Column 2, subject to their possessing the minimum qualifying service on the first day of April of the year for which selection is being made as specified in Col 7 of the Schedule.

(3)

[No person shall be considered for first promotion in the service unless he is regularly selected on the lower post in the service in accordance with one of the methods of recruitment prescribed under the provisions of these rules.]

[Substituted for Vide Notification dt. 17-12-04.]

(4)

[Selection for promotion on the post included in the service shall be made on the basis of seniority-cum-merit.

Provided that the post of Senior Deputy Secretary shall be filled in by promotion from amongst Deputy Secretary (Exam)/ Deputy Secretary/Controller of Examination promoted from Assistant Secretaries and Private Secretaries in proportion of 3:2 and the post of Deputy Secretary (Exam)/ Deputy Secretary/Controller of Examination shall be filled in by promotion from amongst Assistant Secretaries and Private Secretaries in proportion of 3:2.

Provided further that separate seniority list of Deputy Secretary (Exam)/ Deputy Secretary/Controller of Examination promoted from Assistant Secretaries & Private Secretaries shall be maintained for the purpose of promotion to the post of Senior Deputy Secretaries.

Provided also that separate seniority list of Assistant Secretaries & Private Secretaries shall be maintained for the purpose of promotion to the post of Deputy Secretaries.]

[Substituted vide notification dated 17.12.04.]

Provided that for promotion to the post of [Deputy Secretary/controller of Examinations]

[Substituted for the word 'Deputy Secretary' vide Notification No. F. 8(1)2008 dated 13.10.2008 w.e.f. 29.10.05.]

eligible persons from different categories of post carrying identical scale of pay shall be considered in the proportion of the lower posts from which promotion is to be made. The seniority interse for promotion shall be determined on the basis of length of qualifying service. If the length of service is the same, Asstt. Secretary shall be senior to Private Secretary.

[Provided also that while counting the total number of children of a candidate the child born from earlier delivery and having disability shall not be counted.]

[Proviso added vide Notification dated 24.02.11.]

[Proviso to Sub-rule (5) Deleted]

[Deleted to Sub-rule (5) for vide notification dated 18.02.98.]

(5)

[Deleted]

[Deleted Vide Notification dated 18.02.98.]

(6)

[Deleted]

[Deleted for Vide Notification dated 17.12.04.]

(7)

The zone of consideration of persons eligible for promotion shall be as under:-

(i)

Number of vacancies

Number of eligible persons to be considered

(a) for one vacancy

Five eligible persons

(b) for two vacancies

Eight persons.

(c) for three vacancies

Ten eligible persons.

(d) for four vacancies and above

Three times the number of vacancies.

(ii)

Where, the number of eligible persons for promotion to higher post is less than the number specified above, all the persons so eligible shall be considered.

(iii)

Where, adequate number of the candidates belonging to the SC/ST as the case may be are not available within the zone of consideration specified above, the zone of consideration may be extended to [seven]

[Substituted for 'Five' vide notification dated 07.04.03.]

times the number of vacancies and the candidates belonging to the SC/ST as the case may be, (and not any other) coming within the extended zone of consideration shall also be considered against the vacancies reserved for them.

8. [(a) The Committee shall consider the cases of all the senior most persons who are eligible and qualified for promotion to the class of posts concerned under these rules, and shall prepare a list containing names of the persons found suitable on the basis of seniority-cum-merit as per the criteria for promotion laid down in these rules, equal to the number of vacancies determined under rule relating to "Determination of vacancies" of these rules. The list so prepared on the basis of seniority-cum-merit shall be arranged in the order of seniority in the category of posts from which selection is made.

(b)

The Committee may also prepare a separate list on the basis of seniority-cum-merit as per the criteria for promotion laid down in the rules, containing names of persons not exceeding the number of persons selected in the list prepared under(a) above to fill temporary or permanent vacancies which may occur subsequently. The list so prepared on the

basis of seniority-cum-merit shall be arranged in the order of the seniority in the category of posts from which selection shall be made. Such list shall be reviewed and revised by the Departmental Promotion Committee that meets in the subsequent year and that such lists shall remain in force till the end of the last day of the year for which the meeting of the committee is held.]

(c)

Such lists shall be sent to the Commission together with Annual Confidential Reports/Annual Performance Appraisal Reports and other Service record of all the candidates included in the lists as also of those not selected, if any;

[Deleted]

[Deleted vide Notification 17.12.04.]

9. If in any subsequent year, after promulgation of these rules vacancies relating to any earlier year are determined under sub-rule (2) of rule relating to determination of vacancies which were required to be filled by promotion, the D.P.C. shall consider the cases of all such persons who would have been eligible in the year to which the vacancies relate irrespective of the year in which the meeting of the D.P.C. is held and such Promotion shall be governed by the criteria and procedure for promotion as was applicable in the particular year to which the vacancies relate and the service/experience of an incumbent who has been so promoted, for promotion to higher post for any period during which he has not actually performed the duties of the post to which he would have been promoted, shall be counted. The pay of a person who has been so promoted shall be re-fixed at the pay which he would have derived at the time of his promotion but no arrears of pay shall be allowed to him.

(9A)

[After obtaining the approval of the Commission, the Secretary may order for the review of the proceedings of the DPC held earlier on account of same mistake or error, apparent on the face of record or on account of a factual error substantially affecting the decision of the DPC or for any other sufficient reasons e.g. change in seniority, wrong determination of vacancies, judgement/direction of any Court or Tribunal, or where adverse entries in the Confidential Reports of an individual are expunged or toned down or a punishment inflicted on him is set aside or reduced.]

[Added vide Notification dated 27.09.2000 w.e.f 20.02.2000.]

(10)

Appointments shall be made by the Commission after their approval of the recommendations of the Committee taking persons out of the lists finalized under the preceding sub-rule (8) in the order in which they have been placed in the lists, till such lists are exhausted or reviewed and revised, as the case may be.

(11)

The Government may issue instructions for provisionally dealing with promotions, appointments or other ancillary matters in an equitable and fair manner of persons who may be under suspension or against whom departmental proceeding is under progress, at the time promoters are considered to a post to which they are eligible or would have been eligible but for such suspension or pendency of such enquiry or proceedings and the instructions issued in this behalf by the Government for dealing with the cases of Government servants shall mutatis mutandis be applied to this service.

Part – V Appointment, Seniority, Probation And Confirmation

13.

Appointments to the Service.

- Subject to the provision of rule 8, appointments to posts in the service shall be made by the Commission in accordance with the procedure laid down in rule 12.

14.

Urgent temporary appointment.

(1)

A vacancy in the Service, which can not be filled in immediately by promotion under the rules and regulations may be filled in by the Commission by appointing in an officiating capacity thereto an officer eligible for appointment to the posts by promotion under the provisions of these rules and regulations:

Provided that such an appointment will not be continued beyond a period of one year without the approval of the Governor.

(2)

In the event of non-availability of suitable persons fulfilling the requirements of eligibility for promotion required under

sub-rule (1) above, the general instructions issued by the Government, shall mutatis mutandis be applied to this service, regulating permission to fill the vacancies on urgent temporary basis from amongst the Government servants and regarding their pay and other allowances etc.

15.

[

[Substituted vide notification dated 10.10.02.]

Seniority of persons appointed to the post encadred in the service shall be determined from the date of appointment on the post after regular selection in accordance with the provisions of these rules.

Appointment on adhoc or Urgent temporary basis shall not be deemed to be appointment after regular selection.]

[Substituted for Vide Notification dated 17.12.04.]

[Proviso deleted]

[Inserted vide notification dated 28.12.2002 and deleted vide notification dated 28.12.02 w.e.f. 01.04.97.]

[Proviso deleted]

[Provided that a candidate who has got the benefit of proviso inserted vide Notification No. F.7(1) DOP/A-2/96 dated 01-04-97.]

[Provided that reservation for Scheduled Castes and Scheduled Tribes employees, with consequential seniority shall continue till the roster points are exhausted; and adequacy of promotion is achieved.]

[new proviso added vide Notification dated 11.09.11.]

One the roster points are complete the theory of replacement shall thereafter be exercised in promotion whenever vacancies earmarked for Scheduled Castes/Scheduled Tribes employees occur.

If on the application of these provisions the Scheduled Castes/ Scheduled Tribes employees who had been promoted earlier and are found in excess of the adequacy level, shall not be reverted and shall continue on ad-hoc basis, and also any employee who had been promoted in pursuance to Notification No.F.7(1)DOP/A-II/96 dated 1.4.1997 shall not be reverted.

Notification NO. F.7(1)DOP/A-II/96 dated 1.4.1997 shall be deemed to have been repealed w.e.f. 1.4.1997

Explanation: - Adequate representation means 16% representation of the Scheduled Castes and 12% representation of the Scheduled Tribes in accordance with the roster point.

16.

Probation.

- All persons appointed to the lowest post in the service by promotion shall be on probation for a period of one year.

Provided that such of them as have previous to their appointment by promotion officiated temporarily on the post which is followed by regular selection may be permitted by the Commission to count such officiating, or temporary service towards the period of probation. This shall, however not amount to involve suppression, of any senior person or disturb the order of their preference:

Provided further that any period after such appointment during which a person has been on deputation on a corresponding or higher post shall count towards the period of probation.

17.

Unsatisfactory progress during probation.

(1)

If it appears to the Commission at any time during or at the end of the period of probation that a member of the service has not made sufficient use of his opportunities or that he has failed to give satisfaction, the Commission with the approval of the Governor may revert him to the post held substantively by him immediately preceding his appointment provided he holds a lien thereon or in other cases may discharge him from Service:

Provided that the Commission may, if it so thinks fit in any case or class of cases, extend the period of probation of any member of the service by a specified period not exceeding one year:

Provided further that the Commission may, if it so thinks fit in case of person belonging to the Scheduled Castes or the Scheduled Tribes, as the case may be, extend the period of probation by a period not exceeding one year at a time and total extension not exceeding two years.

(2)

Notwithstanding anything contained in the above proviso during the period of probation, if a probationer is placed under suspension or disciplinary proceedings are contemplated or started against him, the period of his probation may be

extended till such period as the Commission thinks fit in the circumstances.

18.

Declaration of satisfactory completion of probation etc.

- At the end of the prescribed or extended period of probation, as the case may be, the Commission shall consider the suitability of the probationer to hold the post to which he was appointed and:-

(a)

If it decides that the probationer is suitable to hold the post to which he was appointed and has passed the examination or tests, if any required to be passed during the period of probation, it shall, as soon as possible, issue an order declaring the probationer to have satisfactorily completed his probation and such an order shall have effect from the date of the expiry of the prescribed, or extended period of probation.

(b)

A probationer shall not be considered to have satisfactorily completed the probation unless a specific order to that effect is passed.

19.

Confirmation.

- A person placed on probation, shall be confirmed in his appointment at the end of his period of probation, if the Commission is satisfied that his integrity is unquestionable and that he is otherwise fit for confirmation.

Part-VI Pay

20.

Scale of Pay.

- The scales of pay attached to the posts in the service shall be such as may be sanctioned by the Government from time to time for corresponding posts in the Secretariat as may be admissible under the rules referred to in rule 22 or as may be ordered by the Governor from time to time.

21.

Increments during probation.

- A person placed on probation shall draw increments in the scale of pay admissible to him in accordance with the provisions of the Rajasthan Service Rules, 1951.

22.

Regulations of Pay, Leave, Allowances, Pension etc.

- Except as provided in these, rules the pay allowances, pension, leave and other conditions of service of a member of the Service shall be regulated by:-

1. The Rajasthan Civil Service (Unification of Pay Scales) Rules, 1950, as amended from time to time;

2. The Rajasthan Service Rules, 1951 as amended from time to time;

3. The Rajasthan Civil Services (Rationalisation of Pay Scales) Rules, 1956 as amended from time to time.

4. The Rajasthan Civil Services (Classification, Control and Appeal) Rules, 1958 as amended from time to time;

5. The Rajasthan Civil Services (Revised Pay Scales) Rules, 1961 as amended from time to time;

6. The Rajasthan Civil Services (New pay Scales) Rules, 1969 as amended from time to time;

7. The Rajasthan Civil Services (Revised New Pay Scales) Rules, 1976, as amended from time to time;

8. The Rajasthan Civil Services (Revised Pay Scales) Rules, 1983 as amended from time to time.

9. The Rajasthan Civil Services (Revised Pay Scales) Rules, 1987 as amended from time to time.

10. The Rajasthan Travelling Allowance Rules, 1971 as amended from time to time.

11. The Rajasthan Civil Services (Conduct) Rules 1971.

12. Any other rules prescribing general conditions of service made by the appropriate authority under the proviso to Article 309 of the Constitution of India, and for the time being in force.

23.

Disciplinary Authorities.

(1)

In respect of disciplinary matters the procedure laid down in the Rajasthan Civil Services (Classification, Control and Appeal) Rules, 1958 as far as may be, shall be followed, before an order imposing any of the penalties specified therein is passed.

(2)

In the case of the Secretary or any other Officer if he is not a member of the Rajasthan Public Service Commission Service the Authority of the Service of which he is a member will be the disciplinary Authority. If he is member of the Service the disciplinary Authority shall be as shown in sub-rule (3) below.

(3)

The disciplinary Authorities in respect of the Secretary if he is a member of the Service and other Gazetted staff of the Commission shall be as below:-

S.No.

Name of the post

Disciplinary Authority

Reviewing Authority

1

Secretary

1A.

Senior Deputy Secretary

Chairman of the Commission or a member thereof

nominated by him.

Governor

2

Deputy Secretary (Exams)

Chairman or a member nominated by the Chairman

Governor

3

Deputy Secretary

3A.

[Controller of Examination]

[Inserted vide notification no. F.8(1)2008/dated 13.10.2008 w.e.f. 29.10.05.]

4

Assistant Secretary

5

Private Secretary

6

Section Officer

7

[Deleted]

[Deleted vide notification dated 12.04.93 w.e.f. 20.02.92 'Selection Grade Stenographer.']

Note:- The penalty of removal or dismissal from service shall be imposed with the approval of the Governor. The minor penalty shall be imposed by the Secretary in respect of posts mentioned at S. No. 4, 5 and 6.

24.

Removal of Doubts.

- If any doubt arises relating to the application, interpretation and scope of these rules, the decision of the Commission shall be final.

25.

Repeal and Savings.

- All rules and orders in relation to matters covered by these rules and regulations in force immediately before the commencement of these rules and regulations are hereby repealed.

Provided that any action taken under the rules and regulations and orders so superseded shall be deemed to have been taken under the provisions of these rules and regulations.

26.

[Power to relax rules and regulations.

[Added vide notification dated 30.07.09.]

- In exceptional cases where Commission is satisfied that operation of the rules relating to age or regarding requirement

of experience for recruitment causes undue hardship in any particular case and is of the opinion that it is necessary or expedient to relax any of the provisions of these rules and regulations with respect to age or experience of any person, it may with the concurrence of the Department of Personnel (A-gr.II), by orders dispense with or relax the relevant provisions these rules and regulations to such extent and subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner. Provided that such relaxation shall not be less favorable than the provisions already contained in these rules and regulations.

Provided that relaxation in the prescribed period of service or experience under this rule shall only be granted to the extent of 1/3 period of the service or experience prescribed for promotion to any post before holding the meeting of the Departmental Promotion Committee.]

Schedule

S.No.

Name of the Post

Method of recruitment with percentage

Direct recruitment

Promotion

Remarks

Direct recruitment

Promotion

Qualification and Experience

Post from which to be made

Qualification & experience

1

2

3

4

5

6

7

8

A-I Administrative Wing:

1. [

Senior Deputy Secretary

-

100.00%

-

1. Deputy Secretary (Exam)/-2. Deputy

Secretary/Controller of Examination

30 Years experience in all including R.P.S.C.

Ministerial Service

]

2. [

Deputy Secretary (Exam)/-[Deputy Secretary/Controller of Examination]

-

100.00%

-

1.Assistant Secretary2. Private Secretary

3 Years qualifying service on the posts

mentioned in col.6

]

* 2 3.

Assistant Secretary

-

100.00%

-

Section Officer

3 years qualifying service on the post mentioned

in Col. 6

* 3 4.

Section Officer

-

100.00%

-

[Assistant Section officer]

2 Years qualifying service on the post mentioned

in Col.6

A-II-Personnel Staff Wing:

1

Private Secretary

-

100.00%

-

[Additional Private Secretary]

[Substituted by Notification No. F.(2) DOP/A-II/2006, dated 15.2.2013-Rajasthan Gazette Extra Part 4(C)(I), dated 15.2.2013, page 187(2), G.S.R. 114.]

3 Years qualifying service on the post mentioned

in Col. 6

Note:- For purpose of promotion to the post of Deputy Secretary, inter-se-seniority of Assistant Secretary and Private Secretary shall be determined from the date of their regular appointment to the posts. If the determined date of appointment is the same, persons appointed as Assistant Secretaries shall be senior to Private Secretary.

Related AI tags, queries and research notes

Translation